

REQUEST FOR PROPOSAL (RFP)

Bid Event Number: EVT0010848

Date Posted: June 05, 2026

Closing Date: July 28, 2026, 2:00 PM CST

Procurement Officer: Tyrone Gasper

Telephone: 785-296-3126

E-Mail Address: Tyrone.Gasper@ks.gov

Web Address: <http://admin.ks.gov/offices/procurement-and-contracts/>

Agency: Kansas Department of Health and Environment

Item: Web-Based Preparedness Application

Period of Contract: Date of final signature through three (3) years
(With the option to renew for two (2) additional twelve-month periods)

Bid Guarantee: No monetary bid guarantee required.
This RFP is contingent upon the availability of state or federal funds and may be terminated by thirty (30) day advance written notice by the Director of Purchases.

This Bid Event was recently posted to the Procurement and Contracts Internet website.
The document can be downloaded by going to the following website:

<http://admin.ks.gov/offices/procurement-and-contracts/>

It shall be the bidder's responsibility to monitor this website on a regular basis for any changes/amendments.

SIGNATURE SHEET

Item: Web-Based Preparedness Application
Agency: Kansas Department of Health and Environment
Closing Date: July 28, 2026, 2:00 PM CST

By submission of a bid and the signatures affixed thereto, the bidder certifies all products and services proposed in the bid meet or exceed all requirements of this specification as set forth in the request and that all exceptions are clearly identified.

Legal Name of Person, Firm or Corporation _____

Mailing Address _____ City & State _____ Zip _____

Toll Free Telephone _____ Local _____

Cell Phone _____ Fax Number _____

Tax Number _____

CAUTION: If your tax number is the same as your Social Security Number (SSN), you must leave this line blank. **DO NOT** enter your SSN on this signature sheet. If your SSN is required to process a contract award, including any tax clearance requirements, you will be contacted by an authorized representative of the Office of Procurement and Contracts at a later date.

E-Mail _____

Signature _____ Date _____

Typed Name _____ Title _____

In the event the **contact for the bidding process** is different from above, indicate contact information below.

Bidding Process Contact Name _____

Mailing Address _____ City & State _____ Zip _____

Toll Free Telephone _____ Local _____

Cell Phone _____ Fax Number _____

E-Mail _____

If **awarded a contract and purchase orders** are to be directed to an address other than above, indicate mailing address and telephone number below.

Award Contact Name _____

Mailing Address _____ City & State _____ Zip _____

Toll Free Telephone _____ Local _____

Cell Phone _____ Fax Number _____

E-Mail _____

VENDOR RESPONSE CHECKLIST REQUEST FOR PROPOSAL (RFP)

The following checklist is provided to assist bidders in ensuring all requirements are met and all required submissions are included with the bid. Bidders are instructed to utilize this list for their own convenience to ensure compliance.

_____ Completed Bidder Registration submitted prior to bid submission (One time)

_____ Invitation to participate received from Procurement Officer prior to bid submission (Each bid)

Technical Proposal (See Section 2.1)

_____ Signature Sheet
_____ Tax Clearance Certificate
_____ Immigration Reform and Control Certification
_____ Sexual Harassment policy
_____ Boycott of Israel
_____ Certificate of Procurement (IT)
_____ Electronic Payment Requirement with Hardship Exception Form
_____ Vendor Preparedness for WCAG 2.1 Level AA
_____ Transmittal Letter
_____ Bidder Information
_____ Qualifications
_____ Experience
_____ Timeline
_____ Methodology
_____ References
_____ Bidder Contracts/Subcontractor information, if applicable
_____ Technical Literature, address Specifications
_____ Completed and signed Event Details document
_____ Sign Any Amendments or Supplemental forms provided
_____ Exceptions to RFP noted, if applicable

Cost Proposal (See Section 2.1)

_____ Cost Sheet
_____ Completed and signed Event Details document

Bids must be received in our office prior to 2:00PM CST on the closing date to be considered following the instructions in Section 2 Bid Submissions of the solicitation. Bids must be marked as follows:

Department of Administration
Procurement and Contracts
Proposal # EVT0010848
Closing Date: July 28, 2026
900 SW Jackson, Room 1001 North
Topeka, KS 66612-1286

NOTE: In order to properly and completely respond to this Request for Proposal, bidders must carefully review all sections and respond as required.

TAX CLEARANCE INSTRUCTIONS

A "Tax Clearance" is a comprehensive tax account review to determine and ensure that the account is compliant with all primary Kansas Tax Laws administered by the Kansas Department of Revenue (KDOR) Director of Taxation. Information pertaining to a Tax Clearance is subject to change(s), which may arise as a result of a State Tax Audit, Federal Revenue Agent Report, or other lawful adjustment(s).

To obtain a Tax Clearance Certificate, you must:

- Go to <http://www.ksrevenue.org/taxclearance.html> to request a Tax Clearance Certificate
- Return to the website the following working day to see if KDOR will issue the certificate
- If issued an official certificate, print it and attach it to your signed renewal document
- If denied a certificate, engage KDOR in a discussion about why a certificate wasn't issued

Per KSA 75-3740-(c), the Director of Purchases may reject the bid of any bidder who is in arrears on taxes due the State of Kansas. The Secretary of the Kansas Department of Revenue is authorized to exchange such information with the Director of Purchases as is necessary to determine a bidder's tax clearance status, notwithstanding any other provision of law prohibiting disclosure of the contents of taxpayer records or information.

Please Note: Individual and business applications are available. For applications entered prior to 5:00 PM Monday through Friday, results typically will be available the following business day. Tax clearance requests may be denied if the request includes incomplete or incorrect information.

Please Note: You will need to sign back into the KDOR website to view and print the official tax clearance certificate.

Information about Tax Registration can be found at the following website:
<http://www.ksrevenue.org/busregistration.html>

**CERTIFICATION REGARDING
IMMIGRATION REFORM & CONTROL**

All Contractors are expected to comply with the Immigration and Reform Control Act of 1986 (IRCA), as may be amended from time to time. This Act, with certain limitations, requires the verification of the employment status of all individuals who were hired on or after November 6, 1986, by the Contractor as well as any subcontractor or sub-subcontractor. The usual method of verification is through the Employment Verification (I-9) Form. With the submission of this bid, the Contractor hereby certifies without exception that Contractor has complied with all federal and state laws relating to immigration and reform. Any misrepresentation in this regard or any employment of persons not authorized to work in the United States constitutes a material breach and, at the State's option, may subject the contract to termination and any applicable damages.

Contractor certifies that, should it be awarded a contract by the State, Contractor will comply with all applicable federal and state laws, standards, orders and regulations affecting a person's participation and eligibility in any program or activity undertaken by the Contractor pursuant to this contract. Contractor further certifies that it will remain in compliance throughout the term of the contract.

At the State's request, Contractor is expected to produce to the State any documentation or other such evidence to verify Contractor's compliance with any provision, duty, certification, or the like under the contract.

Contractor agrees to include this Certification in contracts between itself and any subcontractors in connection with the services performed under this contract.

Signature, Title of Contractor

Date

Policy Regarding Sexual Harassment

Whereas sexual harassment and retaliation for sexual harassment claims are unacceptable forms of discrimination that must not be tolerated in the workplace; and

Whereas state and federal employment discrimination laws prohibit sexual harassment and retaliation in the workplace; and

Whereas officers and employees of the State of Kansas are entitled to working conditions that are free from sexual harassment, discrimination, and retaliation; and

Whereas the Governor and all officers and employees of the State of Kansas should seek to foster a culture that does not tolerate sexual harassment, retaliation, and unlawful discrimination.

Now Therefore, pursuant to the authority vested in me as Governor of the State of Kansas, I hereby order as follows:

1. All Executive Branch department and agency heads shall have available and shall regularly review and update at least every three years or more frequently as necessary, their sexual harassment, discrimination, and retaliation policies. Such policies shall include components for confidentiality and anonymous reporting, applicability to intern positions, and training policies.
2. All Executive Branch department and agency heads shall ensure that their employees, interns, and contractors have been notified of the state's policy against sexual harassment, discrimination, or retaliation, and shall further ensure that such persons are aware of the procedures for submitting a complaint of sexual harassment, discrimination, or retaliation, including an anonymous complaint.
3. Executive Branch departments and agencies shall annually require training seminars regarding the policy against sexual harassment, discrimination, or retaliation. All employees shall complete their initial training session pursuant to this order by the end of the current fiscal year.
4. Within ninety (90) days of this order, all Executive Branch employees, interns, and contractors under the jurisdiction of the Office of the Governor shall be provided a written copy of the policy against sexual harassment, discrimination, and retaliation, and they shall execute a document agreeing and acknowledging that they are aware of and will comply with the policy against sexual harassment, discrimination, and retaliation.
5. Matters involving any elected official, department or agency head, or any appointee of the Governor may be investigated by independent legal counsel.
6. The Office of the Governor will require annual mandatory training seminars for all staff, employees, and interns in the office regarding the policy against sexual harassment, discrimination, and retaliation, and shall maintain a record of attendance.
7. Allegations of sexual harassment, discrimination, or retaliation within the Office of the Governor will be investigated promptly, and violations of law or policy shall constitute grounds for disciplinary action, including dismissal.
8. This Order is intended to supplement existing laws and regulations concerning sexual harassment and discrimination and shall not be interpreted to in any way diminish such laws and regulations. The Order provides conduct requirements for covered persons and is not intended to create any new right or benefit enforceable against the State of Kansas.
9. Persons seeking to report violations of this Order, or guidance regarding the application or interpretation of this Order, may contact the Office of the Governor regarding such matters.

Agreement to Comply with the Policy Against Sexual Harassment, Discrimination, and Retaliation.

I hereby acknowledge that I have received a copy of the State of Kansas Policy Against Sexual Harassment, Discrimination, and Retaliation established by Executive Order 18-04 and agree to comply with the provisions of this policy.

Signature and Date

Printed Name

**CERTIFICATION OF COMPANY
NOT CURRENTLY ENGAGED IN A BOYCOTT OF GOODS or SERVICES FROM ISRAEL**

In accordance with HB 2482, 2018 Legislative Session, the State of Kansas shall not enter into a contract with a Company to acquire or dispose of goods or services with an aggregate price of more than \$100,000, unless such Company submits a written certification that such Company is not currently engaged in a boycott of goods or services from Israel that constitutes an integral part of business conducted or sought to be conducted with the State.

As a Contractor entering a contract with the State of Kansas, it is hereby certified that the Company listed below is not currently engaged in a boycott of Israel as set forth in HB 2482, 2018 Legislature.

Signature, Title of Contractor

Date

Printed

Name of Company

**CERTIFICATION OF COMPANY NOT CURRENTLY ENGAGED IN
THE PROCUREMENT OR OBTAINMENT OF CERTAIN EQUIPMENT, SERVICES, OR SYSTEMS**

WHEREAS, pursuant to Public Law 115-232, Section 889 of the John S. McCain National Defense Authorization Act of 2019, “covered telecommunications equipment or services” is defined as:

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities).
- (2) Video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, and Dahua Technology Company (or any subsidiary or affiliate of such entities).
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment.
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of the National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

WHEREAS, a “covered foreign country” means any of the following: (1) The People’s Republic of China, (2) The Russian Federation, or (3) any country that is a state sponsor of terrorism¹.

WHEREAS, foreign adversaries are increasingly creating and exploiting vulnerabilities in covered telecommunications equipment which store and communicate vast amounts of sensitive information and support infrastructure and emergency services, in order to commit malicious cyber-enabled actions;

WHEREAS, the unrestricted acquisition or use in the State of Kansas of covered telecommunications equipment designed, developed, manufactured, or supplied by persons owned by, controlled by, or subject to the jurisdiction or direction of foreign adversaries augments the ability of foreign adversaries to create and exploit vulnerabilities in technological equipment, services, or systems; and

WHEREAS, the State of Kansas has an interest in protecting itself against threats related to foreign adversary’s exploitation of vulnerabilities in covered telecommunications equipment.

THEREFORE, Contractor certifies that it shall not provide or procure to the State of Kansas or any agency thereof any covered telecommunications equipment either in whole or in part of any product or during the commission of any service.

FURTHERMORE, and notwithstanding any other contracts or agreements with Contractor, if Contractor has violated, misrepresented, or otherwise fails to comply with this certification document as determined by the State, the State may terminate any contract without penalty with Contractor immediately.

By signing the below, Contractor acknowledges and agrees to comply with the provisions of this policy.

CONTRACTOR

Signature, Title

Date

¹ Designations of a “state sponsor of terrorism” may be found at the U.S. Department of State website.

Electronic Payment Requirement with Hardship Exception

All payments due under this Agreement shall be made via electronic funds transfer (EFT) to the account designated by the receiving party. The State shall bear any fees associated with the transfer. Payment shall be deemed complete upon receipt by the receiving party's financial institution. The receiving party agrees to complete the State's DA-130, Authorization for Electronic Deposit of Supplier Payment, through a DocuSign process within 14 days of the receipt of the electronic form.

Notwithstanding the foregoing, if the receiving party determines that electronic payment would create a financial or operational hardship, the receiving party may request the State to make payment by alternative means. Such request must be submitted in writing and approved by the State, which shall not unreasonably withhold consent. Such request should be sent to:

Kansas Department of Administration
Procurement and Contracts
900 SW Jackson, Room 1001 North
Topeka, Kansas 66612-1286

Vendor Preparedness for WCAG 2.1 Level AA Form

1. Bid Event Number
2. Vendor Name
3. Email Address of individual filling out this form
4. Are you providing to the State any of the following products, services, or deliverables under this contract? Select all that apply.
 - Software/application(s)
 - Mobile application(s)
 - Website(s)
 - Online training
 - Video conferencing/meetings and/or tools
 - Content or other materials which may include any of the following: text, images, sounds, videos, controls, animations, documents
 - Documents, including those in any of the following formats: PDFs, word processor file formats, presentation file formats, spreadsheet file formats
 - Content/Documents which may be posted on social media
 - Links to other third-party websites/applications
 - No
 - Other
5. Who are the end users of the products, services, or deliverables selected above? Select all that apply.
 - State employees
 - Members of the public
 - Other third parties
 - Do not know
6. Are each of the selected products, services, or deliverables WCAG 2.1 Level AA compliant today? (Y/N)
7. Will each of the above products, services, or deliverables WCAG 2.1 Level AA be compliant by 4/26/27? (Y/N)

8. Identify the products, services, or deliverables that will not be WCAG 2.1 Level AA be compliant by 4/26/27. Select all that apply.
- Software/application(s)
 - Mobile application(s)
 - Website(s)
 - Online training
 - Video conferencing/meetings and/or tools
 - Content or other materials which may include any of the following: text, images, sounds, videos, controls, animations, documents
 - Documents, including those in any of the following formats: PDFs, word processor file formats, presentation file formats, spreadsheet file formats
 - Content/Documents which may be posted on social media
 - Links to other third-party websites/applications
 - No
 - Other
9. Please provide a link to your Product Accessibility Template (PAT), also known as Voluntary Product Accessibility Template (VPAT). Type N/A if not applicable or available.
10. Are you willing to sign a contract change notice affirming compliance or agreeing to become compliant by the deadline? (Y/N)

1. Bidding Instructions

1.1. Bid Event ID / Reference Number

The Bid Event ID / RFP number, indicated in the header of this page, as well as on the first page of this proposal, has been assigned to this RFP and MUST be shown on all correspondence or other documents associated with this RFP and MUST be referred to in all verbal communications. All inquiries, written or verbal, shall be directed only to the procurement officer reflected on Page 1 of this proposal. There shall be no communication with any other State employee regarding this RFP except with designated state participants in attendance ONLY DURING:

- Negotiations
- Contract Signing
- as otherwise specified in this RFP.

Violations of this provision by bidder or state agency personnel may result in the rejection of the proposal.

1.2. Questions/Addenda

Questions requesting clarification of the bid event must be submitted in WRITING to the Procurement Officer prior to the close of business on June 26, 2026, to the following address:

Tyrone Gasper

Telephone: 785-296-3126

Facsimile: 785-296-7240

E-Mail Address: Tyrone.Gasper@ks.gov

Kansas Department of Administration

Procurement and Contracts

900 SW Jackson Street, Room 1001 North

Topeka, KS 66612-1286

Failure to notify the Procurement Officer of any conflicts or ambiguities in this bid event may result in items being resolved in the best interest of the State. Any modification to this bid event shall be made in writing by addendum and mailed to all vendors who received the original request. Only Written communications are binding.

Answers to questions will be available in the form of an addendum on the Procurement and Contracts' website, <http://admin.ks.gov/offices/procurement-and-contracts>.

It shall be the responsibility of all participating bidders to acquire any and all addenda and additional information as it is made available from the web site cited above. Vendors/Bidders not initially invited to participate in this Bid Event must notify the Procurement Officer (Event Contact) of their intent to bid at least 24 hours prior to the event's closing date/time. Bidders are required to check the website periodically for any additional information or instructions.

1.3. Pre-Bid Conference

No pre-bid conference is scheduled for this bid event.

1.4. Negotiated Procurement

This is a negotiated procurement pursuant to K.S.A. 75-37,102. Final evaluation and award will be made by the Procurement Negotiation Committee (PNC) consisting of the following entities (or their designees):

- Secretary of Department of Administration;
- Director of Purchases, Department of Administration; and
- Head of Using Agency

1.5. Appearance Before Committee

Any, all or no bidders may be required to appear before the PNC to explain the bidder's understanding and approach to the project and/or respond to questions from the PNC concerning the proposal; or, the PNC may

award without conducting negotiations, based on the initial proposal. The PNC reserves the right to request information from bidders as needed. If information is requested, the PNC is not required to request the information of all bidders.

Bidders selected to participate in negotiations may be given an opportunity to submit a revised technical and/or cost proposal/offer to the PNC, subject to a specified cut off time for submittal of revisions. Meetings before the PNC are not subject to the Open Meetings Act. Bidders are prohibited from electronically recording these meetings. All information received prior to the cut off time will be considered part of the bidder's revised offer.

No additional revisions shall be made after the specified cut off time unless requested by the PNC.

1.6. Notices

All notices, demands, requests, approvals, reports, instructions, consents or other communications (collectively "notices") that may be required or desired to be given by either party to the other shall be IN WRITING and addressed as follows:

Kansas Department of Administration
Procurement and Contracts
900 SW Jackson Street, Room 1001 North
Topeka, Kansas 66612-1286

RE: EVT0010848

or to any other persons or addresses as may be designated by notice from one party to the other.

1.7. Cost of Preparing Proposal

The cost of developing and submitting the proposal is entirely the responsibility of the bidder. This includes costs to determine the nature of the engagement, preparation of the proposal, submitting the proposal, negotiating for the contract and other costs associated with this RFP.

1.8. Preparation of Proposal

Prices are to be entered in spaces provided on the cost proposal form if provided herein. Computations and totals shall be indicated where required. In case of error in computations or totals, the unit price shall govern. The PNC has the right to rely on any prices provided by bidders. The bidder shall be responsible for any mathematical errors. The PNC reserves the right to reject proposals which contain errors.

All copies of cost proposals shall be submitted in a separate sealed envelope or container separate from the technical proposal. The outside shall be identified clearly as "Cost Proposal" or "Technical Proposal" with the Bid Event ID / RFP number and closing date.

A proposal shall not be considered for award if the price in the proposal was not arrived at independently and without collusion, consultation, communication or agreement as to any matter related to price with any other bidder, competitor or public officer/employee.

Technical proposals shall contain a concise description of bidder's capabilities to satisfy the requirements of this RFP with emphasis on completeness and clarity of content. Repetition of terms and conditions of the RFP without additional clarification shall not be considered responsive.

1.9. Signature of Proposals

Each proposal shall give the complete legal name and mailing address of the bidder and be signed by an authorized representative by original signature with his or her name and legal title typed below the signature line. If the contract's contact will be a different entity, indicate that individual's contact information for communication purposes. Each proposal shall include the bidder's tax number.

1.10. Acknowledgment of Amendments

All bidders shall acknowledge receipt of any amendments to this bid event by returning a signed hard copy with the bid. Failure to acknowledge receipt of any amendments may render the proposal to be non-responsive. Changes to this bid event shall be issued only by the Office of Procurement and Contracts in writing.

1.11. Modification of Proposals

A bidder may modify a proposal by letter or by email at any time prior to the closing date and time for receipt of proposals.

1.12. Withdrawal of Proposals

A proposal may be withdrawn on written request from the bidder to the Procurement Officer at the Office of Procurement and Contracts prior to the closing date.

1.13. Competition

The purpose of this bid event is to seek competition. The bidder shall advise the Office of Procurement and Contracts if any specification, language or other requirement inadvertently restricts or limits bidding to a single source. Notification shall be in writing and must be received by the Office of Procurement and Contracts no later than five (5) business days prior to the bid closing date. The Director of Purchases reserves the right to waive minor deviations in the specifications which do not hinder the intent of this bid event.

1.14. Evaluation of Proposals

Award shall be made in the best interest of the State as determined by the PNC or their designees. Although no weighted value is assigned, consideration may focus toward but is not limited to:

- Cost. Bidders are not to inflate prices in the initial proposal as cost is a factor in determining who may receive an award or be invited to formal negotiations. The State reserves the right to award to the lowest responsive bid without conducting formal negotiations, if authorized by the PNC.
- Adequacy and completeness of proposal
- Bidder's understanding of the project
- Compliance with the terms and conditions of the RFP
- Experience in providing like services
- Qualified staff
- Methodology to accomplish tasks
- Response format as required by this RFP

1.15. Acceptance or Rejection

The Committee reserves the right to accept or reject any or all proposals or part of a proposal; to waive any informalities or technicalities; clarify any ambiguities in proposals; modify any criteria in this RFP; and unless otherwise specified, to accept any item in a proposal.

1.16. Proposal Disclosures

At the time of closing, only the names of those who submitted proposals shall be made public information. No price information will be released. A List of Responding Bidders may be obtained in the following manner:

1. Requesting a List of Responding Bidders via E-mail to tabsheets@ks.gov or in writing to the following address. Include the Bid Event number EVT0010848 in all requests.

Kansas Department of Administration
Procurement and Contracts
Attn: Bid Results
900 SW Jackson Street, Room 1001 North
Topeka, KS 66612-1286

All other documents pertaining to the bid (tabsheet, individual bids, proposals, contract, etc.) are not available until the bid has been awarded, contract executed or all bids rejected.

Once a bid file is available, a request for a cost estimate may be submitted to the e-mail or address noted above for the costs associated with the reproduction of bid documents. Procurement and Contracts will attempt to provide all Open Records requests with electronic copies when possible.

Requests will not be fulfilled until payment has been received.

Documents will be sent via First Class Mail. If requested, they may be sent via express mail services at the expense of the requester.

A Tabsheet may be requested for the bid event listed by emailing tabsheets@ks.gov or by calling 785-296-2376. All other information falls under the Open Records Act and will need to be requested through the Department of Administration's Office of the Chief Counsel, <https://admin.ks.gov/offices/chief-counsel>.

1.17. Disclosure of Proposal Content and Proprietary Information

All proposals become the property of the State of Kansas. The Open Records Act (K.S.A. 45-215 et seq) of the State of Kansas requires public information be placed in the public domain at the conclusion of the selection process, and be available for examination by all interested parties. (<http://www.admin.ks.gov/offices/chief-counsel/kansas-open-records-act/kansas-open-records-act-procurement-and-contracts>) No proposals shall be disclosed until after a contract award has been issued. The State reserves the right to destroy all proposals if the RFP is withdrawn, a contract award is withdrawn, or in accordance with Kansas law. Late Technical and/or Cost proposals will be retained unopened in the file and not receive consideration or may be returned to the bidder.

Trade secrets or proprietary information legally recognized as such and protected by law may be requested to be withheld if clearly labeled "Proprietary" on each individual page and provided as separate from the main proposal. Pricing information is not considered proprietary and the bidder's entire proposal response package will not be considered proprietary.

All information requested to be handled as "Proprietary" shall be submitted separately from the main proposal and clearly labeled, in a separate envelope or clipped apart from all other documentation. The bidder shall provide detailed written documentation justifying why this material should be considered "Proprietary". The Office of Procurement and Contracts reserves the right to accept, amend or deny such requests for maintaining information as proprietary in accordance with Kansas law.

The State of Kansas does not guarantee protection of any information which is not submitted as required.

1.18. Exceptions

By submission of a response, the bidder acknowledges and accepts all terms and conditions of the RFP unless clearly avowed and wholly documented in a separate section of the Technical Proposal to be entitled: "Exceptions".

1.19. Notice of Award

An award is made on execution of the written contract by all parties.

1.20. News Releases

Only the State is authorized to issue news releases relating to this bid event, its evaluation, award and/or performance of the resulting contract.

2. Proposal Response

2.1. Submission of Proposals

Bidders will submit proposals either electronically or by courier, but not both*

Bid proposals submitted via email will include the following action items:

- Bids submitted via email will be sent to procurement@ks.gov by the due date and time. Subject Line of email must contain EVT0010848 and your company name.
- A Technical Proposal, including the signed Event Details document, applicable literature, and other supporting documents, in Microsoft® Word, Excel or searchable PDF®.
- A Cost Proposal, in Microsoft® Word, Excel or searchable PDF®.
- The technical proposal file must be named "EVT0010848-Company Name-Technical Proposal" and the cost proposal file must be named "EVT0010848-Company Name-Cost Proposal".

It is the bidder's responsibility to ensure bids are received by the closing date and time. Delays in email delivery shall not excuse late bid submissions. **Max email file size is 20MB, several files can be submitted but must be labeled accordingly (example: Technical 1 of 3, Costs 2 of 3, Proprietary 3 of 3 etc.) All descriptions must also contain the required information as listed above.**

Bid proposals submitted via courier will include the following action items:

- One (1) electronic / software version(s) of the technical and cost proposals are required.
- Both the Technical and Cost Proposals shall be on separate flash drives, in Microsoft® Word, Excel or searchable PDF®.
- If asked to submit multiple copies of the proposals, they shall be submitted in a separate sealed envelope or container separate from each other. The outside shall be identified clearly as "Cost Proposal" or "Technical Proposal" with the Bid Event ID number and closing date.

Bidder's proposal, sealed securely in an envelope or other container, shall be received no later than 2:00 p.m., Central Time, on the closing date, addressed as follows:

Kansas Department of Administration
Procurement and Contracts
Proposal: EVT0010848
Closing Date: July 28, 2026, 2:00 PM CST
900 SW Jackson Street, Room 1001 North
Topeka, KS 66612-1286

It is the bidder's responsibility to ensure bids are received by the closing date and time. Delays in mail delivery or any other means of transmittal, including couriers or agents of the issuing entity shall not excuse late bid submissions.

Faxed or telephoned proposals are not acceptable unless otherwise specified.

Proposals received prior to the closing date shall be kept secured and sealed until closing. The State shall not be responsible for the premature opening of a proposal or for the rejection of a proposal that was not received prior to the closing date because it was not properly identified on the outside of the envelope or container. Late Technical and/or Cost proposals will be retained unopened in the file and not receive consideration or may be returned to the bidder.

2.2. Proposal Format

Bidders are instructed to prepare their Technical Proposal following the same sequence as this RFP.

2.3. Transmittal Letter

All bidders shall respond to the following statements:

- (a) the bidder is the prime contractor and identifying all subcontractors;
- (b) the bidder is a corporation or other legal entity;
- (c) no attempt has been made or will be made to induce any other person or firm to submit or not to submit a proposal;
- (d) the bidder does not discriminate in employment practices with regard to race, color, religion, age (except as provided by law), sex, marital status, political affiliation, national origin or disability;
- (e) no cost or pricing information has been included in the transmittal letter or the Technical Proposal;
- (f) the bidder presently has no interest, direct or indirect, which would conflict with the performance of services under this contract and shall not employ, in the performance of this contract, any person having a conflict;
- (g) the person signing the proposal is authorized to make decisions as to pricing quoted and has not participated, and will not participate, in any action contrary to the above statements;
- (h) whether there is a reasonable probability that the bidder is or will be associated with any parent, affiliate or subsidiary organization, either formally or informally, in supplying any service or furnishing any supplies or equipment to the bidder which would relate to the performance of this contract. If the statement is in the affirmative, the bidder is required to submit with the proposal, written certification and authorization from the parent, affiliate or subsidiary organization granting the State and/or the federal government the right to examine any directly pertinent books, documents, papers and records involving such transactions related to the contract. Further, if at any time after a proposal is submitted, such an association arises, the bidder will obtain a similar certification and authorization and failure to do so will constitute grounds for termination for cause of the contract at the option of the State;
- (i) bidder agrees that any lost or reduced federal matching money resulting from unacceptable performance in a contractor task or responsibility defined in the RFP, contract or modification shall be accompanied by reductions in state payments to Contractor; and
- (j) the bidder has not been retained, nor has it retained a person to solicit or secure a state contract on an agreement or understanding for a commission, percentage, brokerage or contingent fee, except for retention of bona fide employees or bona fide established commercial selling agencies maintained by the bidder for the purpose of securing business.

For breach of this provision, the Committee shall have the right to reject the proposal, terminate the contract for cause and/or deduct from the contract price or otherwise recover the full amount of such commission, percentage, brokerage or contingent fee or other benefit.

2.4. Bidder Information

The bidder must include a narrative of the bidder's corporation and each subcontractor if any. The narrative shall include the following:

- (a) date established;
- (b) ownership (public, partnership, subsidiary, etc.);
- (c) number of personnel, full and part time, assigned to this project by function and job title;
- (d) resources assigned to this project and the extent they are dedicated to other matters;
- (e) organizational chart;
- (f) financial statement may be required.

2.5. Qualifications

A description of the bidder's qualifications and experience providing the requested or similar service shall be submitted with the Technical Proposal. The bidder must be an established firm recognized for its capacity to perform. The bidder must have sufficient personnel to meet the deadlines specified in the bid event.

2.6. Experience

All bidders must have a minimum of five (5) years continuous active participation in the applicable industry, providing equipment/services comparable in size and complexity to those specified herein.

2.7. Timeline

A timeline for implementing services must be submitted with the bid.

2.8. Methodology

Bidders shall submit with the bid, a detailed explanation of the methodology for implementing services.

2.9. References

Provide three (3) references who have purchased similar items or services from the bidder in the last five year(s). References shall show firm name, contact person, address, e-mail address and phone number. Bidder's employees and the buying agency shall not be shown as references.

2.10. Bidder Contracts

Bidders must include with their RFP response, a copy of any contracts, agreements, licenses, warranties, etc. that the bidder would propose to incorporate into the contract generated from this Bid Event. (State of Kansas form DA-146a remains a mandatory requirement in all contracts.)

2.11. Technical Literature

All Technical Proposals shall include specifications and technical literature sufficient to allow the State to determine that the equipment/services meet(s) all requirements. If a requirement is not addressed in the technical literature, it must be supported by additional documentation and included with the bid. Proposals without sufficient technical documentation may be rejected.

2.12. Unit Pricing

Each item required by the bid must be individually priced (i.e. priced per single unit) and be able to be ordered individually.

2.13. Equipment

All proposed equipment, equipment options, and hardware expansions must be identified by manufacturer and model number and descriptive literature of such equipment must be submitted with the bid response.

2.14. Procurement Card (P-Card)

Many State Agencies use a State of Kansas Procurement Card (currently Visa) in lieu of a state warrant to pay for certain purchases. No additional charges will be allowed for using the P-Card. Bidders shall indicate on the Event Details document if they will accept the Procurement Card for payment.

3. Terms and Conditions

3.1. Contract

The successful bidder will be required to enter into a written contract with the State. The contractor agrees to accept the provisions of Form DA 146a (Contractual Provisions Attachment), which is incorporated into all contracts with the State and is incorporated into this bid event.

3.2. Contract Documents

This bid event, any amendments, the response and any response amendments of the Contractor, and the State of Kansas DA-146a (Contractual Provision Attachment) shall be incorporated into the written contract, which shall compose the complete understanding of the parties.

In the event of a conflict in terms of language among the documents, the following order of precedence shall govern:

- Form DA 146a;
- written modifications to the executed contract;
- written contract signed by the parties;
- the Bid Event documents, including any and all amendments; and
- Contractor's written offer submitted in response to the Bid Event as finalized.

3.3. Captions

The captions or headings in this contract are for reference only and do not define, describe, extend, or limit the scope or intent of this contract.

3.4. Definitions

A glossary of common procurement terms is available at <http://admin.ks.gov/offices/procurement-and-contracts>, under the "Procurement Forms" link.

3.5. Contract Formation

No contract shall be considered to have been entered into by the State until all statutorily required signatures and certifications have been rendered and a written contract has been signed by the contractor.

3.6. Statutes

Each and every provision of law and clause required by law to be inserted in the contract shall be deemed to be inserted herein and the contract shall be read and enforced as though it were included herein. If through mistake or otherwise any such provision is not inserted, or is not correctly inserted, then on the application of either party the contract shall be amended to make such insertion or correction.

3.7. Governing Law

This contract shall be governed by the laws of the State of Kansas and shall be deemed executed in Topeka, Shawnee County, Kansas.

3.8. Jurisdiction

The parties shall bring any and all legal proceedings arising hereunder in the State of Kansas District Court of Shawnee County, unless otherwise specified and agreed upon by the State of Kansas. Contractor waives personal service of process, all defenses of lack of personal jurisdiction and forum non conveniens. The Eleventh Amendment of the United States Constitution is an inherent and incumbent protection with the State of Kansas and need not be reserved, but prudence requires the State to reiterate that nothing related to this Agreement shall be deemed a waiver of the Eleventh Amendment.

3.9. Mandatory Provisions

The provisions found in Contractual Provisions Attachment (DA 146a) are incorporated by reference and made a part of this contract.

3.10. Termination for Cause

The Director of Purchases may terminate this contract, or any part of this contract, for cause under any one of the following circumstances:

- the Contractor fails to make delivery of goods or services as specified in this contract;
- the Contractor provides substandard quality or workmanship;
- the Contractor fails to perform any of the provisions of this contract, or
- the Contractor fails to make progress as to endanger performance of this contract in accordance with its terms.

The Director of Purchases shall provide Contractor with written notice of the conditions endangering performance. If the Contractor fails to remedy the conditions within ten (10) days from the receipt of the notice (or such longer period as State may authorize in writing), the Director of Purchases shall issue the Contractor an order to stop work immediately. Receipt of the notice shall be presumed to have occurred within three (3) days of the date of the notice.

3.11. Termination for Convenience

The Director of Purchases may terminate performance of work under this contract in whole or in part whenever, for any reason, the Director of Purchases shall determine that the termination is in the best interest of the State of Kansas. In the event that the Director of Purchases elects to terminate this contract pursuant to this provision, it shall provide the Contractor written notice at least 30 days prior to the termination date. The termination shall be effective as of the date specified in the notice. The Contractor shall continue to perform any part of the work that may have not been terminated by the notice.

3.12. Rights and Remedies

If this contract is terminated, the State, in addition to any other rights provided for in this contract, may require the Contractor to transfer title and deliver to the State in the manner and to the extent directed, any completed materials. The State shall be obligated only for those services and materials rendered and accepted prior to the date of termination.

In the event of termination, the Contractor shall receive payment prorated for that portion of the contract period services were provided to or goods were accepted by State subject to any offset by State for actual damages including loss of federal matching funds.

The rights and remedies of the State provided for in this contract shall not be exclusive and are in addition to any other rights and remedies provided by law.

3.13. Debarment of State Contractors

Any Contractor who defaults on delivery or does not perform in a satisfactory manner as defined in this Contract may be barred for a period up to three (3) years, pursuant to KSA 75-37,103, or have their work evaluated for pre-qualification purposes pursuant to K.S.A. 75-37,104.

3.14. Antitrust

If the Contractor elects not to proceed with performance under any such contract with the State, the Contractor assigns to the State all rights to and interests in any cause of action it has or may acquire under the anti-trust laws of the United States and the State of Kansas relating to the particular products or services purchased or acquired by the State pursuant to this contract.

3.15. Breach

Waiver or any breach of any contract term or condition shall not be deemed a waiver of any prior or subsequent breach. No contract term or condition shall be held to be waived, modified, or deleted except by a written instrument signed by the parties thereto.

If any contract term or condition or application thereof to any person(s) or circumstances is held invalid, such invalidity shall not affect other terms, conditions, or applications which can be given effect without the invalid term, condition or application. To this end the contract terms and conditions are severable.

3.16. Hold Harmless

The Contractor shall indemnify the State against any and all loss or damage to the extent arising out of the Contractor's negligence in the performance of services under this contract and for infringement of any copyright or patent occurring in connection with or in any way incidental to or arising out of the occupancy, use, service, operations or performance of work under this contract.

The State shall not be precluded from receiving the benefits of any insurance the Contractor may carry which provides for indemnification for any loss or damage to property in the Contractor's custody and control, where such loss or destruction is to state property. The Contractor shall do nothing to prejudice the State's right to recover against third parties for any loss, destruction or damage to State property.

3.17. Force Majeure

The Contractor shall not be held liable if the failure to perform under this contract arises out of causes beyond the control of the Contractor. Causes may include, but are not limited to, acts of nature, fires, tornadoes, quarantine, strikes other than by Contractor's employees, and freight embargoes.

3.18. Assignment

The Contractor shall not assign, convey, encumber, or otherwise transfer its rights or duties under this contract without the prior written consent of the State. State may reasonably withhold consent for any reason.

This contract may terminate for cause in the event of its assignment, conveyance, encumbrance or other transfer by the Contractor without the prior written consent of the State.

3.19. Third Party Beneficiaries

This contract shall not be construed as providing an enforceable right to any third party.

3.20. Waiver

Waiver of any breach of any provision in this contract shall not be a waiver of any prior or subsequent breach. Any waiver shall be in writing and any forbearance or indulgence in any other form or manner by State shall not constitute a waiver.

3.21. Injunctions

Should Kansas be prevented or enjoined from proceeding with the acquisition before or after contract execution by reason of any litigation or other reason beyond the control of the State, Contractor shall not be entitled to make or assert claim for damage by reason of said delay.

3.22. Staff Qualifications

The Contractor shall warrant that all persons assigned by it to the performance of this contract shall be employees of the Contractor (or specified Subcontractor) and shall be fully qualified to perform the work required. The Contractor shall include a similar provision in any contract with any Subcontractor selected to perform work under this contract.

Failure of the Contractor to provide qualified staffing at the level required by the contract specifications may result in termination of this contract or damages.

3.23. Subcontractors

The Contractor shall be the sole source of contact for the contract. The State will not subcontract any work under the contract to any other firm and will not deal with any subcontractors. The Contractor is totally responsible for all actions and work performed by its subcontractors. All terms, conditions and requirements of the contract shall apply without qualification to any services performed or goods provided by any subcontractor.

3.24. Independent Contractor

Both parties, in the performance of this contract, shall be acting in their individual capacity and not as agents, employees, partners, joint ventures or associates of one another. The employees or agents of one party shall not be construed to be the employees or agents of the other party for any purpose whatsoever.

The Contractor accepts full responsibility for payment of unemployment insurance, workers compensation, social security, income tax deductions and any other taxes or payroll deductions required by law for its employees engaged in work authorized by this contract.

3.25. Worker Misclassification

The Contractor and all lower tiered subcontractors under the Contractor shall properly classify workers as employees rather than independent contractors and treat them accordingly for purposes of workers' compensation insurance coverage, unemployment taxes, social security taxes, and income tax withholding. Failure to do so may result in contract termination.

3.26. Immigration and Reform Control Act of 1986 (IRCA)

All contractors are expected to comply with the Immigration and Reform Control Act of 1986 (IRCA), as may be amended from time to time. This Act, with certain limitations, requires the verification of the employment status of all individuals who were hired on or after November 6, 1986, by the Contractor as well as any subcontractor or sub-contractors. The usual method of verification is through the Employment Verification (I-9) Form.

With the submission of this bid, the Contractor hereby certifies without exception that such Contractor has complied with all federal and state laws relating to immigration and reform. Any misrepresentation in this regard or any employment of persons not authorized to work in the United States constitutes a material breach and, at the State's option, may subject the contract to termination for cause and any applicable damages.

Unless provided otherwise herein, all contractors are expected to be able to produce for the State any documentation or other such evidence to verify Contractor's IRCA compliance with any provision, duty, certification or like item under the contract.

Contractor will provide a copy of a signed Certification Regarding Immigration Reform and Control Form (<http://admin.ks.gov/docs/default-source/ofpm/procurement-contracts/irca.doc?sfvrsn=6>) with the technical proposal.

3.27. Proof of Insurance

Upon request, the Contractor shall present an affidavit of Worker's Compensation, Public Liability, and Property Damage Insurance to Procurement and Contracts.

3.28. Conflict of Interest

The Contractor shall not knowingly employ, during the period of this contract or any extensions to it, any professional personnel who are also in the employ of the State and providing services involving this contract or services similar in nature to the scope of this contract to the State. Furthermore, the Contractor shall not knowingly employ, during the period of this contract or any extensions to it, any state employee who has participated in the making of this contract until at least two years after his/her termination of employment with the State.

3.29. Nondiscrimination and Workplace Safety

The Contractor agrees to abide by all federal, state and local laws, and rules and regulations prohibiting discrimination in employment and controlling workplace safety. Any violations of applicable laws or rules or regulations may result in termination of this contract.

3.30. Confidentiality

The Contractor may have access to private or confidential data maintained by State to the extent necessary to carry out its responsibilities under this contract. Contractor must comply with all the requirements of the Kansas Open Records Act (K.S.A. 45-215 et seq.) in providing services under this contract. Contractor shall accept full responsibility for providing adequate supervision and training to its agents and employees to ensure compliance with the Act. No private or confidential data collected, maintained or used in the course of performance of this contract shall be disseminated by either party except as authorized by statute, either during the period of the contract or thereafter. Contractor agrees to return any or all data furnished by the State promptly at the request of State in whatever form it is maintained by Contractor. On the termination or expiration of this contract, Contractor shall not use any of such data or any material derived from the data for any purpose and, where so instructed by State, shall destroy or render it unreadable.

3.31. Environmental Protection

The Contractor shall abide by all federal, state and local laws, and rules and regulations regarding the protection of the environment. The Contractor shall report any violations to the applicable governmental agency. A violation of applicable laws or rule or regulations may result in termination of this contract for cause.

3.32. Care of State Property

The Contractor shall be responsible for the proper care and custody of any state owned personal tangible property and real property furnished for Contractor's use in connection with the performance of this contract. The Contractor shall reimburse the State for such property's loss or damage caused by the Contractor, except for normal wear and tear.

3.33. Prohibition of Gratuities

Neither the Contractor nor any person, firm or corporation employed by the Contractor in the performance of this contract shall offer or give any gift, money or anything of value or any promise for future reward or compensation to any State employee at any time.

3.34. Retention of Records

Unless the State specifies in writing a different period of time, the Contractor agrees to preserve and make available at reasonable times all of its books, documents, papers, records and other evidence involving transactions related to this contract for a period of five (5) years from the date of the expiration or termination of this contract.

Matters involving litigation shall be kept for one (1) year following the termination of litigation, including all appeals, if the litigation exceeds five (5) years.

The Contractor agrees that authorized federal and state representatives, including but not limited to, personnel of the using agency; independent auditors acting on behalf of state and/or federal agencies shall have access to and the right to examine records during the contract period and during the five (5) year post contract period. Delivery of and access to the records shall be within five (5) business days at no cost to the state.

3.35. Off-Shore Sourcing

If, during the term of the contract, the Contractor or subcontractor plans to move work previously performed in the United States to a location outside of the United States, the Contractor shall immediately notify the Procurement and Contracts and the respective agency in writing, indicating the desired new location, the nature of the work to be moved and the percentage of work that would be relocated. The Director of Purchases, with the advice of the respective agency, must approve any changes prior to work being relocated. Failure to obtain the Director's approval may be grounds to terminate the contract for cause.

3.36. On-Site Inspection

Failure to adequately inspect the premises shall not relieve the Contractor from furnishing without additional cost to the State any materials, equipment, supplies or labor that may be required to carry out the intent of this Contract.

3.37. Indefinite Quantity Contract

This is an open-ended contract between the Contractor and the State to furnish an undetermined quantity of a good or service in a given period of time. The quantities ordered will be those actually required during the contract period, and the Contractor will deliver only such quantities as may be ordered. No guarantee of volume is made. An estimated quantity based on past history or other means may be used as a guide.

3.38. Prices

Prices shall remain firm for the entire contract period and subsequent renewals. Prices shall be net delivered, including all trade, quantity and cash discounts. Any price reductions available during the contract period shall be offered to the State of Kansas. Failure to provide available price reductions may result in termination of the contract for cause.

3.39. Payment

Payment Terms are Net 30 days. Payment date and receipt of order date shall be based upon K.S.A. 75-6403(b). This Statute requires state agencies to pay the full amount due for goods or services on or before the 30th calendar day after the date the agency receives such goods or services or the bill for the goods and services, whichever is later, unless other provisions for payment are agreed to in writing by the Contractor and the state agency. NOTE: If the 30th calendar day noted above falls on a Saturday, Sunday, or legal holiday, the following workday will become the required payment date.

Payments shall not be made for costs or items not listed in this contract.

Payment schedule shall be on a frequency mutually agreed upon by both the agency and the Contractor.

3.40. Invoices

Each purchase order must be individually invoiced. Invoices shall be forwarded to the using agency in duplicate and shall state the following:

- date of invoice.
- date of shipment (or completion of work);
- purchase order number and contract number;
- itemization of all applicable charges; and
- net amount due.

3.41. Accounts Receivable Set-Off Program

If, during the course of this contract the Contractor is found to owe a debt to the State of Kansas, a state agency, municipality, or the federal government, agency payments to the Contractor may be intercepted / setoff by the State of Kansas. Notice of the setoff action will be provided to the Contractor. Pursuant to K.S.A. 75-6201 et seq, Contractor shall have the opportunity to challenge the validity of the debt. The Contractor shall credit the account of the agency making the payment in an amount equal to the funds intercepted.

K.S.A. 75-6201 et seq. allows the Director of Accounts & Reports to setoff funds the State of Kansas owes Contractors against debts owed by the Contractors to the State of Kansas, state agencies, municipalities, or the federal government. Payments setoff in this manner constitute lawful payment for services or goods received. The Contractor benefits fully from the payment because its obligation is reduced by the amount subject to setoff.

3.42. Federal, State and Local Taxes

Unless otherwise specified, the contracted price shall include all applicable federal, state and local taxes. The Contractor shall pay all taxes lawfully imposed on it with respect to any product or service delivered in accordance with this Contract. The State of Kansas is exempt from state sales or use taxes and federal excise taxes for direct purchases. These taxes shall not be included in the contracted price. Upon request, the State shall provide to the Contractor a certificate of tax exemption.

The State makes no representation as to the exemption from liability of any tax imposed by any governmental entity on the Contractor.

3.43. Shipping and F.O.B. Point

Unless otherwise specified, prices shall be F.O.B. DESTINATION, PREPAID AND ALLOWED (included in the price bid), which means delivered to a state agency's receiving dock or other designated point as specified in this contract or subsequent purchase orders without additional charge. Shipments shall be made in order to arrive at the destination at a satisfactory time for unloading during receiving hours.

3.44. Deliveries

All orders shall be shipped within seven (7) days ARO, clearly marked with the purchase order number. If delays in delivery are anticipated, the Contractor shall immediately notify the ordering agency of the revised delivery date or partial delivery date. The order may be canceled if delivery time is unsatisfactory. The Contractor shall inform Procurement and Contracts of any supply or delivery problems. Continued delivery problems may result in termination of the contract for cause.

3.45. Charge Back Clause

If the Contractor fails to deliver the product within the delivery time established by the contract, the State reserves the right to purchase the product from the open market and charge back the difference between contract price and open market price to the Contractor.

3.46. Debarment of State Contractors

Any Contractor who defaults on delivery or does not perform in a satisfactory manner as defined in this Agreement may be barred for up to a period of three (3) years, pursuant to K.S.A. 75-37,103, or have its work evaluated for pre-qualification purposes. Contractor shall disclose any conviction or judgment for a criminal or

civil offense of any employee, individual or entity which controls a company or organization or will perform work under this Agreement that indicates a lack of business integrity or business honesty. This includes (1) conviction of a criminal offense as an incident to obtaining or attempting to obtain a public or private contract or subcontract or in the performance of such contract or subcontract; (2) conviction under state or federal statutes of embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property; (3) conviction under state or federal antitrust statutes; and (4) any other offense to be so serious and compelling as to affect responsibility as a state contractor. For the purpose of this section, an individual or entity shall be presumed to have control of a company or organization if the individual or entity directly or indirectly, or acting in concert with one or more individuals or entities, owns or controls 25 percent or more of its equity, or otherwise controls its management or policies. Failure to disclose an offense may result in the termination of the contract.

3.47. Materials and Workmanship

The Contractor shall perform all work and furnish all supplies and materials, machinery, equipment, facilities, and means, necessary to complete all the work required by this Contract, within the time specified, in accordance with the provisions as specified.

The Contractor shall be responsible for all work put in under these specifications and shall make good, repair and/or replace, at the Contractor's own expense, as may be necessary, any defective work, material, etc., if in the opinion of agency and/or Procurement and Contracts said issue is due to imperfection in material, design, workmanship or Contractor fault.

3.48. Industry Standards

If not otherwise provided, materials or work called for in this contract shall be furnished and performed in accordance with best established practice and standards recognized by the contracted industry and comply with all codes and regulations which shall apply.

3.49. Implied Requirements

All products and services not specifically mentioned in this contract, but which are necessary to provide the functional capabilities described by the specifications, shall be included.

3.50. Submission of the Bid

Submission of the bid will be considered presumptive evidence that the bidder is conversant with local facilities and difficulties, the requirements of the documents and of pertinent State and/or local codes, state of labor and material markets, and has made due allowances in the proposal for all contingencies. Later claims for labor, work, materials, equipment, and tax liability required for any difficulties encountered which could have been foreseen will not be recognized and all such difficulties shall be properly taken care of by Contractor at no additional cost to the State of Kansas.

3.51. New Materials, Supplies or Equipment

Unless otherwise specified, all materials, supplies or equipment offered by the Contractor shall be new, unused in any regard and of most current design. All materials, supplies and equipment shall be first class in all respects. Seconds or flawed items will not be acceptable. All materials, supplies or equipment shall be suitable for their intended purpose and, unless otherwise specified, fully assembled and ready for use on delivery.

3.52. Inspection

The State reserves the right to reject, on arrival at destination, any items which do not conform with specification of the Contract.

3.53. Acceptance

No contract provision or use of items by the State shall constitute acceptance or relieve the Contractor of liability in respect to any expressed or implied warranties.

3.54. Ownership

All data, forms, procedures, software, manuals, system descriptions and work flows developed or accumulated by the Contractor under this contract shall be owned by the using agency. The Contractor may not release any materials without the written approval of the using agency.

3.55. Information/Data

Any and all information/data required to be provided at any time during the contract term shall be made available in a format as requested and/or approved by the State.

3.56. Certification of Materials Submitted

The Bid document, together with the specifications set forth herein and all data submitted by the Contractor to support their response including brochures, manuals, and descriptions covering the operating characteristics of the item(s) proposed, shall become a part of the contract between the Contractor and the State of Kansas. Any written representation covering such matters as reliability of the item(s), the experience of other users, or warranties of performance shall be incorporated by reference into the contract.

3.57. Transition Assistance

In the event of contract termination or expiration, Contractor shall provide all reasonable and necessary assistance to State to allow for a functional transition to another vendor.

3.58. Integration

This contract, in its final composite form, shall represent the entire agreement between the parties and shall supersede all prior negotiations, representations or agreements, either written or oral, between the parties relating to the subject matter hereof. This Agreement between the parties shall be independent of and have no effect on any other contracts of either party.

3.59. Modification

This contract shall be modified only by the written agreement and approval of the parties. No alteration or variation of the terms and conditions of the contract shall be valid unless made in writing and signed by the parties. Every amendment shall specify the date on which its provisions shall be effective.

3.60. Severability

If any provision of this contract is determined by a court of competent jurisdiction to be invalid or unenforceable to any extent, the remainder of this contract shall not be affected and each provision of this contract shall be enforced to the fullest extent permitted by law.

3.61. Award

Award will be by line item or group total, whichever is in the best interest of the State of Kansas.

4. SPECIFICATIONS

Definitions/Acronym List

Term	Description
Application	<u>Application</u> refers to the web-based platform which will collect, store, report, calculate and track all applicable data. (Also “system”)
After Action Report	A document detailing the strengths, weaknesses, and lessons learned from a disaster response or emergency exercise. With the goal to identify improvements for future preparedness, response, and recovery efforts by analyzing what happened, what went well, and what needs fixing.
BCHS	KDHE Bureau of Community Health Systems – Preparedness Section
EHR	<u>Electronic Health Record</u> systems are used by hospitals and medical providers to manage patient care, medications, treatments, quality management and outcomes reporting.
ICS	Incident Command System is a standardized, flexible framework for managing emergencies and planned events, integrating facilities, personnel, procedures, and communications into a common structure for effective command, control, and coordination across different agencies and jurisdictions, ensuring clarity, safety, and efficient resource use during any incident, from small spills to large disasters.
KDHE	Kansas Department of Health and Environment
RFP	Request for Proposal
User	A <u>User</u> is a person staffed at the state or local health entity that will have access to use the features laid out within each application.

Background/History

BCHS provides funding and training opportunities to local public health agencies, healthcare partners, emergency management personnel, and emergency medical service providers to enhance the level of emergency preparedness through the state. Additionally, BCHS facilitates emergency response planning and provides coordination and support during execution of emergency response plans.

BCHS utilizes a cloud application to collect, track, and share data between local entities and KDHE. This provides near real-time visibility into the availability of health care resources, including numbers of beds and locations of specialized care. Access to this system is provided for state administrative personnel, as well as personnel associated with participating facilities and resources.

A cloud-based ICS application is used to coordinate incident response activities at local and regional levels across the state of Kansas from planning to execution. Access to this platform enables public health agencies, healthcare partners, and other emergency response personnel to track and coordinate response activities using data-driven decision-making.

Scope of Work

In Scope Proposals

BCHS seeks proposals from qualified vendors for the implementation of a cloud-based application or applications to support the data management and incident command functions described in Background/History. Submitted proposals must address both of the following key functional areas:

Incident Management – a scalable electronic incident command system (ICS) that supports planning for, responding to and recovering from emergency incidents. The system must adhere to the National Incident Management System (NIMS) and the National Response Framework and adapted for public health and healthcare use.

Bed Availability and Resource Management – A statewide electronic healthcare facility resource management platform as a data store that captures various, customizable essential elements of information (EEI), organize situational awareness views and reports collating the data in a variety of ways (by location, by pre-set region, by state, etc.), and create incidents and incident notifications via email and SMS.

Offers must respond to both project components 1) Incident Management and 2) Bed Availability and Resource Management.

Out of Scope Proposals

The collection of patient data and patient movement/tracking are not part of this RFP. No Protected Health Information will be accessible through the applications.

Outputs and System Requirements

Key functional requirements are outlined in Functional Requirements Section. The successful vendor will submit a proposal specifying how they will provide incident management and/or bed availability and resource management system application(s) that will meet BCHS program requirements.

Project Management and Communication

The vendor must provide a point of contact for technical assistance and ongoing monthly meetings with BCHS program staff for the duration of the contract. Additionally, a help desk or technical support contact must be available 24/7.

Functional Requirements

Incident Management Areas Requirements

Table Instructions

- **Reference #** – Requirement identifier number that must be referenced by KDHE and Vendor throughout the RFP process.
- **Requirement Description** – Describes the key functionality elements BCHS is looking for in the proposed application.
- **Description of Service** – Vendors shall use this space to identify the capacity to meet the requirement identified.

A – Access		
Reference	Requirement Description	Description of Service
A1	The application must be accessible and fully functional using any web-capable device, including tablets, smartphones, and laptops.	
A2	The application must be accessible and fully functional with the current versions of at least one of the following web browsers: Microsoft Edge, Google Chrome, Apple Safari, or Mozilla Firefox.	
A3	The application must support users from state, local, and regional levels and conduct cross-sector data collection and information sharing.	
A4	The application shall not have per-seat/per-use license fees and be able to support 5,000 concurrent users.	
A5	Application Availability—The application must be available 24 hours a day, 7 days a week, 365 days a year, with at least a 99.95% uptime (excluding scheduled application maintenance).	
A6	The application must not require any software to be downloaded onto user machines to function properly. Solutions that require the installation of client software will not be considered.	

B – Security/Monitoring Requirements		
Reference	Requirement Description	Description of Service
B1	The application shall allow authorized administrators to view users' access status and be able to terminate current connections as needed.	
B2	The application must support role-based access controls.	
B3	The application's role-based access controls must allow discrete authorization for read/write, editing, and deletion permissions.	
B4	Local system administrators shall be able to assign user roles and privileges to user accounts.	

B5	The application must support segregation of data access privileges based on user role.	
B6	The application shall allow authorized administrators to create new healthcare facility accounts and new user accounts related to that healthcare facility.	
B7	The application must require all users to login using a unique ID and password.	
B8	The application must require Multi-Factor Authentication (MFA) for all users, including administrators and staff, upon every login attempt to the system.	
B9	Must be able to provide full audit logs for authentication events upon request.	
B10	Per the Data Security Attachment, Contractor shall ensure that all AGENCY Production and Non-Production Data remains in the United States of America. Contractor shall further ensure no Production or Non-Production Data is accessed by Contractor employees, contractors, or any other authorized individual located outside of the United States.	

C – User Interface Requirements		
Reference	Requirement Description	Description of Service
C1	Ability to export reports in Excel or Comma-Separated Value (CSV) formats.	
C2	The application includes a Federal Emergency Management Agency-compatible After-Action Report that is completed and downloaded.	
C4	The application shall provide the ability to create incidents, manage multiple incidents simultaneously, and store, query and view historical data associated with an incident.	
C5	Application has a distinct user administration section. A system administrator must be able to easily add/change/inactivate/remove users.	
C6	Each user shall have a distinct access profile.	
C7	Application shall provide access to a test/demo environment for system testing and user training.	
C8	Application shall allow Hazard Vulnerability Assessment to be completed and downloadable.	

Bed Availability and Resource Management Project Area Requirements

Table Instructions

- **Reference #** – Requirement identifier number that must be referenced by KDHE and Vendor throughout the RFP process.
- **Requirement Description** – Describes the key functionality elements BCHS is looking for in the proposed application.
- **Description of Service** – Vendors shall use this space to identify the capacity to meet the requirement identified.

D – Access Requirements		
Reference	Requirement Description	Description of Service
D1	The application must be accessible and fully functional using any web-capable device including tablets, smart phones, and laptops.	
D2	The application must be accessible and fully functional with the current versions of at least one of the following web browsers: Microsoft Edge, Google Chrome, Apple Safari, or Mozilla Firefox.	
D3	The application must support users from state, local and regional levels and conduct cross-sector data collection and information sharing	
D4	The application shall not have per seat/per use license fees and be able to support 2,000 concurrent users.	
D6	Application Availability—The application must be available 24 hours a day, 7 days a week, 365 days a year, with at least a 99.95% uptime (excluding scheduled application maintenance).	
D7	The application must not require any software to be downloaded onto user machines to function properly. Solutions that require installation of client software will not be considered.	

E – Security/Monitoring Requirements		
Reference	Requirement Description	Description of Service
E1	The application shall allow authorized administrators to view users access status and be able to terminate current connections as needed.	
E2	The application must support role-based access controls.	
E3	The application's role-based access controls must allow discrete authorization for read/write, editing, and deletion permission.	
E4	Local system administrators shall be able to assign user roles and privileges to user accounts.	
E5	The application must support segregation of data access privileges based on user role.	

E6	The application shall allow authorized administrators to create new healthcare facility accounts and new user accounts related to that healthcare facility.	
E7	The application must require all users to login using a unique ID and password.	
E8	The application must require Multi-Factor Authentication (MFA) for all users, including administrators and staff, upon every login attempt to the system.	
E9	Must be able to provide full audit logs for authentication events upon request.	
E10	Per the Data Security Attachment, Contractor shall ensure that all AGENCY Production and Non-Production Data remains in the United States of America. Contractor shall further ensure no Production or Non-Production Data is accessed by Contractor employees, contractors, or any other authorized individual located outside of the United States.	

F – User Interface Requirements		
Reference	Requirement Description	Description of Service
F2	Ability to export reports to Excel or Comma-Separated Value (CSV).	
F3	The application shall have the ability to batch upload/update user data.	
F4	Application has a distinct user administration section. A system administrator must be able to easily add/change/inactivate/remove users.	
F5	Each user shall have a distinct access profile.	
F6	Application shall provide access to a test/demo environment for system testing and user training.	
F7	Application has the ability for system administrators to enter a “switch to user view”. Temporarily allowing administrators to be in the system as the user and troubleshoot issues.	
F8	Application shall allow the system administrators to create and configure resource and status views.	
F9	Applications shall allow users the ability to make personal resource and status views.	
F10	The facility account includes a detailed snapshot of facility contacts, resource availability, and other data points.	
F11	Application shall provide the ability to create ad-hoc and standard event prompts to collect facilities point-in-time data.	

G – Add-On Functionality		
Reference	Requirement Description	Description of Service
G1	The application provides API support to automate the import of bed availability data from Hospital Electronic Health Record (EHR) information.	

Deliverables (Vendor to complete for RFP)

Timeline

In response to this RFP, the Bidder will provide an estimated timeline for completion of the following:

- Coordinate pilot testing of web-based application in demo environment with BCHS.
- Move web-based application to production and provide technical assistance to BCHS for onboarding end users.
- Provide ongoing technical assistance to KDHE staff. Provide end-user training.
- Provide ongoing web-based application maintenance and support.

Technical Proposal

The bidder's technical proposal shall address all items mentioned in Functional Requirements Section. In the proposal response, please complete the tables in section three to include how you propose to meet the specifications of this section.

The bidder will review the Kansas Department of Health and Environment's Data Security Attachment.

The bidder's technical proposal will include the following completed documents:

- Cloud Service Provider Questionnaire
- Security Questionnaire
- Architecture Document

Timeline

The bidder is to complete the items below and submit them in the Technical Proposal. We realize these are estimates. Proposals must include a timeline for implementation.

Deliverable	Target Date (X months/X business days after final contract signature)
Complete application specifications	
Web-based application developed for pilot testing	
Web application training for BCHS	
Application moved to production and provided technical assistance to KDHE	
Onboarding of end users	
Go-Live date	

State Resources to be Provided

The BCHS Preparedness Section staff will serve as domain administrator(s) within the system.

**Kansas Department of Health and Environment
Data Security Attachment**

The following provisions apply to all successful bidders providing goods and/or services to Kansas Department of Health and Environment ("AGENCY") under this Data Security Attachment. These provisions are incorporated into the Contract between the Contractor and AGENCY. By submitting a bid, the Contractor confirms that it can comply with, and will be bound by, these provisions and any other applicable terms and conditions in the solicitation.

1. General Statements.

- a. Contractor acknowledges that it receives and/or has access to AGENCY computers, communication systems, data, and/or networks for the purposes set forth in the Contract. Contractor agrees to ensure that any information or data required to be delivered pursuant the Contract shall be delivered through systems and infrastructure approved by AGENCY and shall be consistent with industry best practices pertaining to security. If any data is made available or accessible to Contractor, its employees, agents, or contractors, pertaining to AGENCY's business or financial affairs, or to AGENCY's projects or transactions, Contractor will not store, copy, analyze, monitor, or otherwise use that data except for the purposes set forth in the Contract for the benefit of AGENCY.
- b. Subject to any other express agreement between the Parties with respect to the Contract, Contractor has implemented and will maintain appropriate technical and organizational measures, internal controls, and information security routines intended to protect AGENCY's data, services, and infrastructure in its environments or under its control against accidental, unauthorized or unlawful access, disclosure, alteration, loss, or destruction, as set out below.
- c. To the extent AGENCY's data includes personal data, the implementation of and compliance with these measures and any additional security measures set out herein are designed to provide an appropriate level of security in respect of the processing of the personal data and shall at all times comply fully with all applicable laws, regulations, and government orders relating to Restricted-Use Information and data privacy with respect to any such data that Contractor receives or has access to under the Contract or in connection with the performance of any services for AGENCY. Contractor will otherwise protect Restricted-Use Information and will not use, disclose, or transfer across borders such Restricted-Use Information.
- d. Contractor shall, at all times, remain compliant with the privacy and security requirements mandated by federal, state and local laws and regulations. Specifically, Contractor will fully comply with all Kansas statutes, regulations, and policies including the requirements in:
 - i. K.S.A 75-7244.
 - ii. S.B. 291 as published in Session Laws as published in Session Laws 2024, ch. 95, eff. July 1, 2024
 - iii. Applicable Kansas IT policies and standards adopted under the authority of the Kansas Information Technology Executive Council (ITEC), including 7000 Series "Security"

2. Definitions.

- a. "Accepted Working Condition" (AWC) is the condition of the application in the Production Environment after the initial use of that application in the Production Environment.
- b. "Authorized Personnel" means Contractor's employees who have a need to know or otherwise access Restricted-Use Information to enable Contractor to perform its obligations under this Contractor.
- c. "Change Request" (CR) is any activity that alters the objectives, deliverables, requirements, basic architecture, cost or schedule of the service, solution, or interface system; or an activity that creates an impact/change to a current application in production, software configuration, or hardware configuration. An agency CR is defined as any change within the original scope of work and specifications. Any alteration of the original bid's scope of work or specifications must originate through the Office of Procurement.
- d. "Contract" is the legal agreement between AGENCY and the Contractor to which this document is incorporated into.

- e. "Criminal Justice Information Services" (CJIS) is data provided to AGENCY by the Federal Bureau of Investigation or the Kansas Bureau of Investigation that includes sensitive information about criminal activities, investigations, and individuals involved in the criminal justice system. CJIS data shall include but is not limited to: (1) biometric data; (2) identity history data; (3) biographic data; and (4) case history data.
- f. "Cybersecurity Incident" shall have the meaning ascribed to it in 75-7244.
- g. "Data Center" shall mean a facility physically located in the United States of America where the servers, software, and/or hardware parts of Contractor's service are located in.
- h. "Data Security Incident" means a situation where Aggregator reasonably believes that there has been (1) the loss or misuse (by any means) of Restricted-Use Information, (2) the inadvertent, unauthorized and/or unlawful processing, corruption, modification, transfer, sale or rental of Restricted-Use Information; (3) any other act or omission that compromises the security, confidentiality, or integrity of Restricted-Use Information or (4) any breach of any data protection requirements in relation to the processing of Restricted-Use Information by Contractor any current or former employees of Contractor.
- i. "Destroy" means shredding, permanently erasing and deleting, degaussing, or otherwise modifying Restricted Use Information in paper, electronic, or other means so as to make it unreadable, unreconstructible, and indecipherable.
- j. "Information Security Incident" includes Data Security Incident and Cybersecurity Incident as defined in this Attachment. Information Security Incident does not include unsuccessful access attempts or similar events that do not compromise the security or privacy of the Supplier's systems, including pings, port scans, denial of service attacks, and other network attacks on firewalls or networked systems.
- k. "Information System" is a set of components, including hardware, software, data, people, and processes, that work together to collect, store, process, and distribute information.
- l. "Non-Production Data" is data used for testing, development, or training, and not for live business operations or real users. Non-Production Data includes but is not limited to anonymized or sample data that does not contain Restricted-Use Information.
- m. "Personal Financial Information" (PFI) is any non-public personally identifiable financial information that an entity collects about an individual in order to provide a financial product or service.
- n. "Personally Identifiable Information" (PII) is any information that can be used on its own or with other information to identify or locate a single person. PII shall include but not be limited to a person's social security number (SSN), passport number, driver's license number, taxpayer identification number, patient identification number, and financial account or credit card number.
- o. "Production Data" is any data, including but not limited to information, figures, statistics, records, documents, or results, derived directly or indirectly from a Production Environment. This may include data from a development environment where it originates from or current/historic data from a Production Environment.
- p. "Production Environment" is the operational environment in which a software application or system is deployed and used by end users to perform their intended tasks.
- q. "Protected Health Information" (PHI) is any information, in any form or medium, held or transmitted, about health status, provision of health care, or payment for health care that is created or collected by a covered entity or the business associates of a covered identity and can be linked to a specific individual.
- r. "Restricted-Use Information" (RUI) includes CJIS, PFI, PII, and PHI as defined in this Attachment.
- s. "Vulnerability Scan" is the process of identifying weaknesses in information system components that could be used to compromise networks, systems, databases, or applications. Vulnerability scanning includes but is not limited to scanning for patch levels, scanning for functions, ports, protocols, and services that should not be accessible to users or devices, and scanning for improperly configured or incorrectly operating information flow control mechanisms.

3. Security Governance.

a. *Security Awareness and Training.* Contractor shall maintain an effective information security awareness, training, and education program, informing all employees, subcontractors, and other relevant parties of their information security obligations. Contractor shall have an information security policy that is communicated to and available to its staff. Contractor shall ensure that employees and subcontractors involved in the Contract maintain a requisite level of competence in the relevant information security systems technology. Determination of requisite level of competence shall be in AGENCY's discretion and shall satisfy the following minimum standards:

- i. Contractor's information security systems awareness training must meet the minimum requirements for IT security procedures and State of Kansas, Kansas Information Technology Executive Council (ITEC), Office of Information Technology Services (OITS) and AGENCY policies, statutes and standards including ITEC 7000 Series.
- ii. At the execution of the Contract and, thereafter, upon receipt of any written request by AGENCY, Contractor shall provide Contractor's information security policy, evidence of the security awareness, training, and education program to AGENCY, and a letter warranting all of Contractor's employees, and any other individuals acting on behalf of Contractor or under Contractor's direction, successfully completed Health Insurance Portability and Accountability Act (HIPAA) and IT security awareness training prior to accessing AGENCY data. The letter shall also provide details of the of topics the training employees have completed.

If Contractor's training does not meet the requisite level of competence requirements as determined by AGENCY, employees of the vendor will be required to complete the AGENCY Vendor IT Security Training before access is granted to AGENCY data.

b. *Security Roles and Responsibilities.* If providing a service, solution, software, data hosting, or an interface to AGENCY, Contractor shall:

- i. Define, and document roles and responsibilities related to information security for the service, solution, software, data hosting, or interface;
- ii. Implement user identification and access controls designed to limit access to users in accordance with the principles of least privilege;
- iii. Ensure that all personnel with physical or logical access to the service, solution, software, data hosting, or interface will receive industry standard annual security awareness training;
- iv. Maintain documentation regarding roles and responsibilities related to information security for the service, solution, software, or interface and review and update this document at least once per year; and
- v. At the execution of the Contract and, thereafter, upon receipt of any written request by AGENCY, Contractor shall provide such documentation to AGENCY.

c. *Change Management.* Contractor shall ensure that all changes to proposed services, solutions, or interfaces are authorized according to change management policies. Contractor will maintain the service, solution, or interface in the AWC with respect to the version of all related hardware/software that may affect the service, solution, or interface. Contractor is not obligated to upgrade service, solution, or interface to meet upgrades of any hardware/software made by AGENCY unless a CR is completed. All project deliverables formally approved or baselined will be governed by a change management request to be approved by the Parties. Contractor will maintain a development environment that will allow them to provide modifications to the service, solution, or interface as demonstrated in the AWC. An impact analysis and other testing shall be conducted before software is installed or changes are put in production. Results of the impact analysis and testing shall be orderly documented.

4. **Physical & Environmental Security.** Contractor shall support physical and environmental security measures, including securing data on a secure server, in locked data cabinets within a secure facility located within the United States of America. Contractor shall adhere to the following:

- a. All AGENCY data must be contained in secure, environmentally controlled Data Centers located in the United States of America. Data Centers shall be owned, operated, and controlled by Contractor. If the Data Center is not owned, operated, and controlled by Contractor (including leased facilities), then Contractor must receive AGENCY approval in writing for Contractor's use of alternate Data Centers. Contractor will identify and notify AGENCY of the locations of all Data Centers used to host AGENCY data. Contractor shall ensure that all AGENCY data is always stored, processed, and maintained within the United States of America. Contractor shall further ensure that no AGENCY Data is accessed by Contractor's employees, contractors, or any other individuals under Contractor's control from outside of the United States.
- b. Data Centers must implement physical environmental controls that mitigate or prevent damage from water, fire, temperature, and humidity for Information Systems that process, store, or transmit RUI. Contractor must ensure sufficient power protection is available for critical Information Systems to perform an orderly shutdown.
- c. Contractor must restrict physical access to Data Centers that process, store, or transmit RUI to Authorized Personnel only. Contractor must maintain a list, which shall be reviewed and updated as user access privileges change or at least annually, of all Authorized Personnel with physical access to Data Centers that process, store, or transmit RUI. Contractor must require Authorized Personnel to authenticate themselves prior to entry to Data Centers that process, store or transmit RUI. If Contractor allows visitors to Data Centers that process, store or transmit RUI, then visitors must always be escorted by Authorized Personnel. Contractor must log all visitor access to Data Centers that process, store or transmit RUI.

5. **Data Security & Management.**

- a. Contractor shall at all times implement and maintain physical, electronic and organizational security measures in accordance with the best practices and highest industry standards to protect AGENCY's data, materials, and any deliverables against any unauthorized access, use, destruction, loss, disclosure, or improper alteration.
- b. Contractor shall ensure Contractor's Data Center and/or cloud environment is secure with industry standard encryption techniques that meets all legal requirements for data stored at rest and in transit. Contractor shall ensure Secure Socket Layers (SSL) configuration per industry best practices, session, and port management.
- c. Contractor shall ensure that external connections incorporated into the Data Center and/or cloud have appropriate security controls including industry standard intrusion detection and countermeasures that will detect and terminate any unauthorized activity prior to entering the firewall maintained by Contractor. Contractor shall ensure that the Data Center will utilize industry standard firewalls regulating all data entering the internal data network from any external source which will enforce secure connections between internal and external systems and will permit only authorized data to pass through.
- d. Contractor shall utilize industry standard malware protection, incorporating both signature and non-signature-based detection mechanisms, on all systems with access to AGENCY data. Contractor shall ensure that malware protection will be centrally managed and receive regular automatic updates to malicious code protection mechanisms and data files.
- e. Contractor shall ensure that any service, software, solution, data hosting, or an interface is capable of auditing the following events: (1) successful and unsuccessful account logon events; (2) account management events; (3) object access; (4) policy change; (5) privilege functions; (6) process tracking and system events; (7) all administrator activity; (8) authentication checks; (9) authorization check; (10) data deletions; (11) data access; (12) data changes; and (13) permission changes.
- f. Contractor shall ensure that the service, software, solution, data hosting, or interface employs automated mechanisms to centrally review, analyze and correlate audit and log records from multiple components of the service, software, solution, data hosting, or an interface to support organizational processes for investigation, alerting and response to suspicious activities. Contractor shall ensure that the service, software, solution, data hosting, or interface supports exporting of log files to AGENCY for review and analysis.

- g. Contractor will maintain a complete asset inventory of its infrastructure, network, applications, and cloud environments. Contractor will also maintain an inventory of all its media on which AGENCY's data is stored. Access to the inventories of such media will be restricted to that Parties' Authorized Personnel.
- h. Contractor shall provide and maintain a backup of AGENCY data that can be recovered in an orderly and timely manner within a predefined frequency consistent with recovery time and recovery point objectives. Contractor shall store a daily incremental and weekly full back backup of AGENCY's data within the United States of America. Contractor will maintain a disaster recovery plan. At the execution of the Contract and upon written request by AGENCY, Contractor shall provide such plan to AGENCY.
- i. Contractor shall implement a contingency plan designed to maintain the access to AGENCY data and to prevent the unintended destruction or loss of data. The contingency plan should provide a predefined frequency, consistent with recovery time and recovery point objectives for disaster recovery and archival purposes of AGENCY data at a secure facility located within the United States of America.
- j. Contractor shall ensure that all AGENCY Production Data remains in the United States of America. Contractor shall further ensure no Production Data is accessed by Contractor employees, contractors, or any other authorized individual located outside of the United States.
- k. Contractor shall ensure that all AGENCY Non-Production Data remains in the United States of America. Contractor shall further ensure no Non-Production Data is accessed by Contractor employees, contractors, or any other authorized individual located outside of the United States.
- l. If applicable, upon completion, termination, or expiration of the Contract, or at the request of AGENCY, Contractor shall promptly return all media supplied by AGENCY, accompanied by a letter which certifies all private and/or confidential data and software supplied by AGENCY have been removed from all Contractor's equipment, files, and backup. Contractor shall also dispose of any data in accordance with Paragraph 8.
- m. In the event the Contractor ceases doing business, dissolves, ceases to provide all services as defined in the Contract, makes a general assignment for benefit of creditors, has a receiver appointed for any reason, suffers a foreclosure, attachment or levy on any significant business assets, admits its inability to pay debts as they mature or becomes the debtor in any bankruptcy proceeding, the Parties agree to enter into a separate statement of work at a negotiated rate for all work performed in connection with a data migration project to migrate AGENCY's data. Both Parties agree to negotiation of the separate statement of work in good faith. Should Contractor fail to abide by the terms of this paragraph and not enter a separate statement of work, AGENCY reserves the right to obtain all of AGENCY's data that AGENCY or its affiliates have created, store, uploaded, and or modified within thirty (30) days of notification and at no cost to AGENCY.

6. Data Privacy.

- a. Contractor will implement and maintain a written information security program that contains appropriate security measures to safeguard the RUI of AGENCY's data that the Contractor receives, stores, maintains, processes, or otherwise accesses in connection with the provision of services hereunder.
- b. Contractor shall not disclose to any other person, firm, or corporation or entity (other than to AGENCY) or use for its own benefit, except as provided in the Contract, any data and/or confidential information it receives from AGENCY. Contractor shall return any and all data furnished by AGENCY and its affiliates within 30 days of the request of AGENCY in whatever form(s) it is maintained by Contractor. On the termination of the Contract, Contractor will not use any of such data or any material derived from the data for any purpose and will destroy such data or material except as otherwise expressly stated by this attachment or the Contract. In the event Contractor discloses any of AGENCY's proprietary and/or RUI, AGENCY may immediately terminate the Contract and pursue legal action recourse. The restrictions and obligations contained herein shall continue in perpetuity from the date of the Contract unless AGENCY provides a written release to Contractor.
- c. Except to the extent the information is proven to be publicly known through no breach or misappropriation, and except to the extent a statute, rule or regulation requires AGENCY to make information publicly available, all software, documentation, interfaces and other components of the

service provided by Contractor is confidential information of Contractor, and may not be disclosed or used by AGENCY, except solely for its own internal business purposes.

7. Information Security Incidents.

- a. Contractor shall maintain an incident response program that implements incident handling for information security incidents that includes preparation, detection and analysis, containment, eradication, and recovery processes. The incident response program must have the capability to support automated mechanisms for supporting incident handling processes.
- b. Contractor is responsible for all Information Security Incidents that is processed by, or on behalf of, Contractor. Contractor shall immediately notify AGENCY (within twelve hours) in writing whenever Contractor reasonably believes that there has been an Information Security Incident. After providing such notice, Contractor will investigate the Information Security Incident, and immediately take all necessary steps to eliminate or contain any exposure of RUI and keep AGENCY advised of the status of such Information Security Incident and all matters related thereto. Contractor further agrees to provide, at Contractor's sole cost, reasonable assistance and cooperation requested by AGENCY, in the furtherance of any correction, remediation, or investigation of any such Information Security Incident and/or the mitigation of any damage, including any notification required by law or that AGENCY may determine appropriate to send to individuals impacted or potentially impacted by the Information Security Incident. In addition, within a reasonable time frame of identifying or being informed of an Information Security Incident, Contractor shall develop a plan and submit to AGENCY for review a plan that reduces the likelihood of a recurrence of such Information Security Incident.
- c. Contractor agrees to adhere to all Information Security Incident reporting in accordance with K.S.A. 75-7244, including utilizing the Incident Reporting Form on the Kansas Office of Information Technology Services website.

8. Destruction of Data. Unless otherwise specified in the Contract, Contractor agrees that upon termination of the Contract or upon request by AGENCY, Contractor shall erase, destroy, and render unrecoverable all AGENCY and AGENCY affiliate data and certify in writing that these actions have been completed within a time frame communicated to Contractor by an authorized agent of AGENCY. At a minimum, media sanitization is to be performed according to the standards enumerated by the National Institute of Standards, Guidelines for Media Sanitization Special Publication 800-88r1. Records of all sanitizations involving AGENCY data shall maintained for five (5) years. In the case that any data must be retained for Federal Reporting purposes beyond the termination of the Contract, the Parties shall arrange for the proper transfer, storage, archiving and schedule for deletion of such data.

9. Vulnerability Scans & Security Audit.

- a. Contractor shall conduct Vulnerability Scans on networks, systems, databases, or applications that create, maintain, process, transmit, or store data hosting AGENCY RUI on a regular basis (no less than every thirty days). Contractor shall perform quarterly Vulnerability Scans using an Intrusion Detection System (IDS) and Intrusion Prevention System (IPS) and shall provide AGENCY with the results of those scans.
- b. If a Vulnerability Scan identifies vulnerabilities in Contractor's networks, systems, databases, or applications, Contractor is expected to remediate them or, in the rare cases where that is not possible, implement approved and documented compensating controls to reduce risk. In cases where a vulnerability introduces heightened risk to data exposure, AGENCY may disconnect, disable and/or block the device from accessing AGENCY systems until remediation or risk mitigation takes place.
- c. Contractor shall ensure performance of a security audit at least once annually.

10. Generative AI. Contractor shall comply with the State of Kansas Generative Artificial Intelligence (AI) Policy (Memorandum No. P8200.00).

- a. Contractor shall ensure that responses generated from generative AI outputs shall be reviewed by knowledgeable human operators for accuracy, appropriateness, privacy, and security before being acted upon or disseminated.

- b. Contractor shall ensure RUI or any other confidential AGENCY data shall not be utilized in generative AI queries or for building or training proprietary generative AI programs unless explicitly approved by AGENCY with consultation from the Chief Information Security Officer.
- c. At the execution of the Contract, Contractor shall disclose Contractor's utilization of generative AI or integrations with Generative AI platforms. Contractor shall immediately notify AGENCY of any updates to Contractor's systems that would change Contractor's use of generative AI. If Contractor is utilizing Generative AI to build software explicitly for the State of Kansas, Contractor must demonstrate positive control over all data input into the system. Contractor shall annotate all usage of software code generated by generative AI.

11. **AGENCY Audit.** In addition to any documents outlined in this Appendix, upon AGENCY's reasonable written request with no less than thirty (30) days' notice during the term of the Contract, the Contractor agrees to cooperate and assist AGENCY with information security audits regarding the Contractor's compliance with the terms and conditions regarding information security hereunder. This cooperation shall include, but not be limited to:

- a. Providing evidence of certification, policies, training and awareness program, and compliance related to information security;
- b. Making available to AGENCY the Contractor's Service and Organization Controls (SOC) 2;
- c. Making available to AGENCY the Contractor's NIST 800-53;
- d. Making available to AGENCY an executive summary of the Contractor's most recent information security tests, including remedial actions taken;
- e. Providing evidence of a comprehensive continuous monitoring program encompassing all systems with access to AGENCY data; and
- f. Permitting AGENCY to review the Contractor's information security program, including results of vulnerability scanning.

Name of Vendor
Cloud Service Provider Questionnaire

1. Does the Cloud Service Provider (CSP) have a secure environment, federally authorized to at least the standards of confidentiality and integrity from the Moderate FIPS-199 level to store records containing Personal Identifiable Information (PII)?
2. Does the Cloud provider have the ability to alter Terms of Service or contracts without the express written consent of the customer agency?
3. Will the ownership of data remain under the sole ownership of the State of Kansas at all times?
4. Will backup information be returned to the State of Kansas in the event the contract is ended or the Cloud provider files for bankruptcy?
5. Is there a documented process to address the removal and control of agency information upon the termination of the contract between the agency and the cloud provider?
6. Can the cloud provider utilize any data stored on their systems for any purpose outside agency use?
7. Does the contract contain language to restrict the sharing of privacy data with any entity not explicitly authorized in the contract?
8. Does the contract contain language to restrict the storage, transfer, or processing of privacy data to only facilities that fall under the legal jurisdiction of the United States?
9. What controls are in place to prevent the misuse of data by those having access?
10. Does the cloud provider allow for access to data as permitted under current federal and Kansas law to both authorized federal agencies and individuals wishing to verify their own PII?
11. While the data is with the cloud provider, what are the requirements for determining if the data is sufficiently accurate, relevant, timely, and complete to ensure fairness in making determinations?
12. Describe what privacy training is provided and who is responsible for protecting the privacy rights of the users of the cloud?
13. How does the cloud provider facilitate response to Kansas Open Records Act (KORA) / Federal Open Information Act (FOIA) / subpoena requests?
14. Is there a complete and documented process to report and handle breaches?
15. Describe the process that the CSP will use to report, within 1-hour, any potential privacy or security breaches to the agency regardless of whether the breach was intentional or inadvertent.
16. Describe the specific redress actions that the agency can take against the cloud provider in the event of a breach.

Security Questionnaire

Instructions for Completing the Web-Enabled Application Security Questionnaire

Vendor will complete this questionnaire by responding to all questions to the best of their ability.

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
Physical Security- involves the security of the physical devices, which includes the ability to control access to such hardware.		
#	Question	Response
1	What are the hardware components and where are they physically located?	
2	Who has access to the physical components?	
3	Are the environmental controls adequate (i.e., smoke and water detection, fire prevention)?	
4	What UPS is being used and what characteristics does it have?	
User Security- addresses the ability to ensure that the user accessing data and systems is in fact who they say they are and that they have access only to those resources to which they are authorized. Functions that are involved in this issue include identification, authentication, and authorization of the individual, as well as non-repudiation and audit.		
#	Question	Response
5	How are users identified to the systems?	
6	What unique form of identification do they have (UserID) ?	
7	Who administers the UserIDs?	
8	How are inactive users removed, by whom, and how timely?	
9	How are users authenticated to the system (passwords, smart cards, biometrics)?	
10	If passwords are used, what are the specific password rules (minimum length, character makeup, aging, etc)?	
11	How is assurance provided that the information received has not been altered?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
12	How is assurance provided that the reputed sender is indeed the one who sent it?	
13	What levels of system access are there?	
14	Who determines and maintains?	
15	What audit trails are maintained to enable reconstruction and/or review of operations performed on systems?	
16	How are they protected so users can not change them?	
17	How often are they reviewed and by whom?	
Application Security- concerns the built-in security features of the application itself.		
#	Question	Response
18	What security features are built into the application?	
19	How specifically do the security features work?	
20	If the application communicates to other systems, how does that happen? (i.e.. web server to database server).	
21	Has auto complete = off been set for all input fields on applications using IE 5.0 or above.?	
22	What information is logged for each transaction? (The minimum is userID, IP Address, and time and date stamp)	
23	Where is the logging information stored?	
24	Does the application use session tokens that are custom created or default from a Vendor, i.e.. Microsoft? (All session tokens shall be user unique, non-predictable, and resistant to reverse engineering.)	
25	Does the application store any cookies on client machines? If so, what are they?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
26	Are cookies checked for validity when returned back to the server?	
27	Are sessions and/or cookies destroyed when the user logs out of the application?	
28	Does the application require re-authentication for critical user actions such as money transfer?	
29	What security controls are built around files where userIDs, passwords, Pins, etc are stored?	
30	Are all authentication events (logging in, logging –out, failed logins, etc.) logged?	
31	Are all administrative events (account management actions, enabling or disabling logging, etc.) logged?	
32	Are logs written so only new records can be added, and existing records not overwritten or deleted?	
33	What client-side data validation is done?	
34	What data validation is done on the server side? (this shall be done even if it is redundant to cursory validation performed on the client side).	
35	How is editing done to prohibit generic meta-characters from being present in input data?	
36	Are all database queries constructed with parameterized stored procedures to prevent SQL injection?	
37	Can any variables be used in script? If yes, how are they protected to prevent direct OS Commands attacks?	
38	What scripting language is being used? Has it been checked for vulnerabilities and have they been addressed?	
39	Does the application do security checking after UTF-8 decoding is completed?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
40	Have all comments been removed for any code passed to the browser?	
41	Can users see any debugging information on the client?	
42	Have all sample, test and unused files been removed from the production system?	
43	Are pages with personal data cached?	
44	Are forms submissions done using a POST request rather than a GET?	
45	Does IUSR and/or network services need write permissions to any folders? If so, which ones and why?	
46	Does IUSR and/or Network Service need read and/or write access to the registry beyond the defaults?	
47	Does your application require any shared folders?	
48	Are all your connection string information(passwords & user names) stored in the registry and not in the application?	
49	Does your application need parental paths on in the IIS server?	
50	Does your application use stored procedures for database interaction?	
51	Do you follow ADA guidelines in your presentation layers of your application?	
52	Does your application require any 3rd party software that is not a standard part of our Microsoft operating system?	
53	Does your web application adhere to a three layer architecture (Presentation, Business and Data)?	
System Security -involves the analysis of the overall operating systems and software used to support the applications software.		
#	Question	Response
54	What research has been done for known security vulnerabilities?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
55	Who installs Vendor-supplied security upgrades and patches? Are we up-to-date?	
56	Have unnecessary services been removed or disabled?	
57	Has debugging mode on any web server been turned off for production?	
58	Are default accounts disabled and passwords changed from defaults?	
59	Does the data base user have limited abilities in being only able to run stored procedures or select?	
Data Security -encompasses both physically protecting the application data from unauthorized access as well as loss of data through mechanical/electrical failure or viruses		
#	Question	Response
60	Is Authentication used at all times when accessing or making changes to data to ensure confidentiality?	
61	Is at least 128-bit encryption used for any data transmitted over public networks?	
62	Are all FTP transmissions of data over insecure channels encrypted using PGP software?	
63	Is auditing activated and all access to data logged?	
64	What are the backup and archive procedures that will be used?	
65	What are the offsite storage requirements of backups and archives?	
66	Are backups encrypted if highly sensitive data is involved?	
67	What virus control software and detection procedures will be used to protect the data?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
68	How is privacy maintained to ensure that customer's personal data collected from electronic transmissions is protected from unauthorized transmissions?	
Network Security- includes the physical/electrical links between the Desktop Client and the Host computer		
#	Question	Response
69	What documents show the network environment with a diagram that shows all links and component parts?	
70	How is the LAN isolated from any network-connected device that does not have a valid business relationship with resources on the LAN?	
71	Are firewalls used between the LAN and the Internet to prevent untrusted networks from accessing the LAN?	
72	If public access to a server in the internal LAN is required, has the server been put on a separate LAN segment behind the firewall device typically referred to as the DMZ?	
73	Have intrusion detection systems been installed?	
74	How are they monitored for unauthorized access?	
Security Administration- involves the administration of the overall security plan		
#	Question	Response
75	Who are the security administrators for the application?	
76	What functions do they provide?	
77	How are users provided with userIDs and passwords?	
78	Are passwords restricted from being distributed by telephone or unsecured electronic mail?	
79	How are unusual incidents handled?	

Web-Enabled Application Security Questionnaire for: <i>Vendor Name</i> Date: / /		
80	Have all employees or users of the application been instructed to exercise caution to prevent the release of sensitive details to unauthorized sources?	
Database Security: involves the connections to the database		
#	Question	Response
81	Do you pass SQL query information or hierarchy paths via the request objects?	
82	Does your application use server side validation for sensitive, financial, or authorization information input before disseminating, writing, updating or allowing access to the application or database?	

Architecture Document

Vendor Name

Date

1. Introduction

1.1. Add Text.

2. Architecture Overview

2.1. Add Text.

2.2. Add diagram.

3. Architectural Layers

3.1. Add Text.

3.2. Add diagram.

4. Logical Architecture

4.1. Add text.

4.2. Add diagram.

5. Deployment Architecture

5.1. Add text.

5.2. Add diagram.

6. Disconnected Operations

6.1. Add text.

6.2. Add diagram.

7. Security

7.1. Add text.

7.2. Add diagram.

8. Microsoft Enterprise Library

8.1. Add text.

9. Operational Considerations

9.1. Add text.

5. COST SHEET

Contractor Name: _____

Cost proposals must be submitted separately from the Technical Proposal, unless otherwise specified. Bidders must complete the below cost proposal. The format and structure of the cost proposal is intended to allow for a quantitatively comparable evaluation among bidders. Deviation from the format or structure of this Cost Proposal may result in Bidder's proposal being deemed non-responsive.

This RFP is contingent upon the availability of state or federal funds and may be terminated by thirty (30) day advance written notice by the Director of Purchases.

A. Implementation Costs through Go-Live Date.

Please provide a fixed price. The lines are to coincide with the deliverables/timeline schedule submitted in the Technical Proposal. The item may be a fixed cost. Please include a cost breakdown, including the additional cost for the requested add-on functionality.

Item	Line-Item Cost
Incident Management Functional Requirements	
Bed Availability and Resource Management Functional Requirements	
G1 Add-on API functionality	
TOTAL COST:	

B. Annual Costs for the remainder of the five-year contract period. Include cost for annual license and support fee.

Annual costs	Year 1	Year 2	Year 3	Year 4	Year 5
Incident Management Functional Requirements					
Bed Availability and Resource Management Functional Requirements					
G1 Add-on API functionality					
TOTAL COST:					

6. Contractual Provisions Attachment

DA-146a Rev. 07/19

6.1. Important

The parties agree that the following provisions are hereby incorporated into the contract to which it is attached and made a part thereof, said contract being the date of final signature.

6.2. Terms Herein Controlling Provisions

It is expressly agreed that the terms of each and every provision in this attachment shall prevail and control over the terms of any other conflicting provision in any other document relating to and a part of the contract in which this attachment is incorporated. Any terms that conflict or could be interpreted to conflict with this attachment are nullified.

6.3. Kansas Law and Venue

This contract shall be subject to, governed by, and construed according to the laws of the State of Kansas, and jurisdiction and venue of any suit in connection with this contract shall reside only in courts located in the State of Kansas.

6.4. Termination Due to Lack of Funding Appropriation

If, in the judgment of the Director of Accounts and Reports, Department of Administration, sufficient funds are not appropriated to continue the function performed in this agreement and for the payment of the charges hereunder, State may terminate this agreement at the end of its current fiscal year. State agrees to give written notice of termination to contractor at least thirty (30) days prior to the end of its current fiscal year and shall give such notice for a greater period prior to the end of such fiscal year as may be provided in this contract, except that such notice shall not be required prior to ninety (90) days before the end of such fiscal year. Contractor shall have the right, at the end of such fiscal year, to take possession of any equipment provided State under the contract. State will pay to the contractor all regular contractual payments incurred through the end of such fiscal year, plus contractual charges incidental to the return of any such equipment. Upon termination of the agreement by State, title to any such equipment shall revert to contractor at the end of the State's current fiscal year. The termination of the contract pursuant to this paragraph shall not cause any penalty to be charged to the agency or the contractor.

6.5. Disclaimer of Liability

No provision of this contract will be given effect that attempts to require the State of Kansas or its agencies to defend, hold harmless, or indemnify any contractor or third party for any acts or omissions. The liability of the State of Kansas is defined under the Kansas Tort Claims Act (K.S.A. 75-6101, et seq.).

6.6. Anti-Discrimination Clause

The contractor agrees: (a) to comply with the Kansas Act Against Discrimination (K.S.A. 44-1001, et seq.) and the Kansas Age Discrimination in Employment Act (K.S.A. 44-1111, et seq.) and the applicable provisions of the Americans With Disabilities Act (42 U.S.C. 12101, et seq.) (ADA), and Kansas Executive Order No. 19-02, and to not discriminate against any person because of race, color, gender, sexual orientation, gender identity or expression, religion, national origin, ancestry, age, military or veteran status, disability status, marital or family status, genetic information, or political affiliation that is unrelated to the person's ability to reasonably perform the duties of a particular job or position; (b) to include in all solicitations or advertisements for employees, the phrase "equal opportunity employer"; (c) to comply with the reporting requirements set out at K.S.A. 44-1031 and K.S.A. 44-1116; (d) to include those provisions in every subcontract or purchase order so that they are binding upon such subcontractor or vendor; (e) that a failure to comply with the reporting requirements of (c) above or if the contractor is found guilty of any violation of such acts by the Kansas Human Rights Commission, such violation shall constitute a breach of contract and the contract may be cancelled, terminated or suspended, in whole or in part, by the contracting state agency or the Kansas Department of Administration; (f) Contractor agrees to comply with all applicable state and federal anti-discrimination laws and regulations; (g) Contractor agrees all hiring must be on the basis of individual merit and qualifications, and discrimination or harassment of persons for the reasons stated above is prohibited; and (h) if it is determined that the contractor has violated the provisions of any portion of this paragraph, such violation shall constitute a breach of contract and the contract may be canceled, terminated, or suspended, in whole or in part, by the contracting state agency or the Kansas Department of Administration.

6.7. Acceptance of Contract

This contract shall not be considered accepted, approved or otherwise effective until the statutorily required approvals and certifications have been given.

6.8. Arbitration, Damages, Warranties

Notwithstanding any language to the contrary, no interpretation of this contract shall find that the State or its agencies have agreed to binding arbitration, or the payment of damages or penalties. Further, the State of Kansas and its agencies do not agree to pay attorney fees, costs, or late payment charges beyond those available under the Kansas Prompt Payment Act (K.S.A. 75-6403), and no provision will be given effect that attempts to exclude, modify, disclaim or otherwise attempt to limit any damages available to the State of Kansas or its agencies at law, including but not limited to, the implied warranties of merchantability and fitness for a particular purpose.

6.9. Representative's Authority to Contract

By signing this contract, the representative of the contractor thereby represents that such person is duly authorized by the contractor to execute this contract on behalf of the contractor and that the contractor agrees to be bound by the provisions thereof.

6.10. Responsibility for Taxes

The State of Kansas and its agencies shall not be responsible for, nor indemnify a contractor for, any federal, state or local taxes which may be imposed or levied upon the subject matter of this contract.

6.11. Insurance

The State of Kansas and its agencies shall not be required to purchase any insurance against loss or damage to property or any other subject matter relating to this contract, nor shall this contract require them to establish a "self-insurance" fund to protect against any such loss or damage. Subject to the provisions of the Kansas Tort Claims Act (K.S.A. 75-6101, et seq.), the contractor shall bear the risk of any loss or damage to any property in which the contractor holds title.

6.12. Information

No provision of this contract shall be construed as limiting the Legislative Division of Post Audit from having access to information pursuant to K.S.A. 46-1101, et seq.

6.13. The Eleventh Amendment

"The Eleventh Amendment is an inherent and incumbent protection with the State of Kansas and need not be reserved, but prudence requires the State to reiterate that nothing related to this contract shall be deemed a waiver of the Eleventh Amendment."

6.14. Campaign Contributions / Lobbying

Funds provided through a grant award or contract shall not be given or received in exchange for the making of a campaign contribution. No part of the funds provided through this contract shall be used to influence or attempt to influence an officer or employee of any State of Kansas agency or a member of the Legislature regarding any pending legislation or the awarding, extension, continuation, renewal, amendment or modification of any government contract, grant, loan, or cooperative agreement.